

2.6.3 Natural heir

In the case of a transfer of an opposition from a deceased natural opponent to his or her heir, the heir can only be ascertained by reference to the particular national laws of succession applicable to the estate of the deceased opponent. It follows that the person seeking to establish that they have the right to succeed to an opposition must produce satisfactory evidence that he, she or they have done so under the relevant national law (T.74/00).

2.7. Effect of finding that no transfer took place during opposition proceedings

In T.1178/04 (OJ 2008, 80) the opposition division had decided that the transfer of opponent status in the course of the opposition proceedings was valid. The board held that even if the transfer of the opponent status during the opposition proceedings was invalid, the appeal by the opponent was nevertheless admissible. The board explained that "party" simply meant someone who takes part in the proceedings before the EPO. If it was decided by the department of first instance that he was entitled to take part in the proceedings he remained a party even though this decision was later reversed on appeal; such a decision on appeal had the effect that he was no longer entitled to take part in the proceedings, but not that he had never been a party to the proceedings. His position could not change retrospectively from that of having been a party to that of never having been a party. After reviewing the evidence the board held that no valid transfer of the status of opponent had taken place. The only means of correcting this error was to set aside the decision of the opposition division as a whole. The opposition division was thus not bound by its previous decision. It was only bound by the ratio decidendi of the board's decision as regards the transfer of opposition status (see also T.1081/06).

In T.194/15 the board decided that the evidence submitted showed that the transfer of the business assets from Abbott to AbbVie took place before the opposition had been filed. Accordingly, the opposition filed by Abbott could no longer be transferred to AbbVie. As a consequence, the opposition proceedings were continued with the wrong party as opponent. Referring also to T.1178/04 and T.1982/09, the board decided to remit the case to the opposition division so that the proceedings could be conducted with the right party.

2.8. No administrative fee for a transfer of opponent status

There is no administrative fee to pay for a transfer of opponent status (T.261/03 of 24 November 2005; T.413/02).

P. Intervention

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Under Art. 105 EPC, to intervene admissibly in opposition proceedings a party must show either that proceedings for infringement of the same patent have been instituted against him, or that following a request of the proprietor of the patent to cease alleged infringement, the third party has instituted proceedings for a ruling that he is not infringing the patent. Under Art. 105(2) EPC, an admissible intervention shall be treated as an opposition.

1. Admissibility of intervention

1.1. Any third party – independent legal entity

In **T.305/08** the appellant (opponent I) had filed an appeal against the decision of the opposition division to reject the opposition. Two separate interventions were subsequently filed (by opponents II and III), which also raised fresh grounds of opposition under Art. 100(c) EPC 1973. The board stated that the term "any third party" in Art. 105(1) EPC could not be given an interpretation other than that each party had to be a separate legal entity and that it was irrelevant whether they belonged to the same group of companies. Nor was allowing the interventions tantamount to allowing the appellant to late-file

oppositions via opponents II and III under its control and thus introduce new evidence. The interventions were therefore admissible.

In T 384/15 two interventions were filed in the appeal procedure by different legal entities, both belonging to the same company. The respondent (patent proprietor) argued that there was credible evidence that the opponent was acting as a straw man on behalf of the company to which also the two interveners were inextricably linked. The board considered that there was no question that the interveners were third parties within the meaning of Art. 105(1) EPC, i.e. different legal entities, with respect to the opponent (appellant) regardless as to whether or not one of the interveners was the principal instructing the opponent (G 3/97, OJ 1999, 245). The board also rejected the argument that there had been an attempt by the opponent and the interveners to circumvent the law by abuse of process, since there was no proof that the opponent had acted directly on behalf of one of the interveners (T 305/08).

In T 1702/17 the board held that the only material issue when determining whether the interveners could be regarded as third parties was whether the appellant and the interveners were legally distinct companies and thus independent legal entities. Economic ties of any kind between the three companies (in the case in issue, the respondent had asserted that the relationship was as 100% subsidiaries of the appellant under its authority) were immaterial under the EPC as regards the admissibility of the interventions. Nor had there been any abuse of law. On the contrary, allowing third parties to assert new grounds for opposition and submit new documents as interveners with the aim of having the patent revoked was in keeping with the spirit and purpose of the provisions of Art. 105 EPC and thus the legislator's intent.

In T 435/17 the board held that a "third party" within the meaning of Art. 105(1) EPC had to be a separate legal entity from the other parties, and that there was no legal basis for excluding an intervener on the grounds that it shared premises, a current account for fee payments or a professional representative with an opponent.

In T 1891/20 an intervention was filed in the appeal procedure by a legal entity separate from appellant II. The respondent (patent proprietor) argued among other things that appellant II and the intervener had a common representative, who had made submissions in a single document which concerned both of these parties. The board referred to R. 151 EPC, according to which parties may appoint a common representative. The appointment of a common representative for two opponents was not different from the appointment of a common representative for an opponent and an intervener. In both cases, the commonly represented parties could be in a different situation as to the admittance of their submissions. This, however, did not prevent them from appointing a common representative. The board considered the intervener as a "third party".

1.2. Relevant patent

In T 446/95, in which an infringement action had been based on a French national patent, the board held that the intention and purpose of an intervention in accordance with Art. 105 EPC 1973 was to enable the assumed infringer to defend himself against the

action by the patentee based on the opposed European patent, in order to prevent the EPO and the national courts handing down contradictory decisions on the validity of European patents. In the case in question, the fact that the European patent had claimed priority from the French patent and that France had been designated was irrelevant, as there was no legal basis for intervening in the European patent on the basis of an infringement action relating to the French patent. The admissibility of an intervention before the EPO could not depend on a provision of national law. The intervention was therefore inadmissible.

In T. 7/07 the board held that the patent in suit was not granted for Lithuania under the EPC, as Lithuania was an extension state and therefore could not be designated for a European patent. The national law of the extension state governs the extension proceedings and the legal effects of the extension. The infringement proceedings were based on a patent which had been granted for a number of EPC contracting states and which, under Lithuanian law, also took effect in Lithuania, but exclusively on the basis of Lithuanian national law, which conferred the same effect on this patent as on a national patent. As a result, the infringement proceedings were not based on the European patent in suit in the opposition proceedings. The board agreed with the findings in T. 1196/08 that an intervention based on proceedings for infringement of a patent that has effect in a particular state solely on the basis of national law is inadmissible because it fails to meet one of the requirements under Art. 105(1)(a) EPC. It therefore regarded the intervener's submissions as third-party observations under Art. 115 EPC.

1.3. National infringement proceedings

Under Art. 105 EPC, third parties may intervene only if they prove either (a) that proceedings for infringement of the opposed European patent have been instituted against them or (b) that, following a request by that patent's proprietor that they cease the alleged infringement, they have instituted proceedings for a ruling that they are not infringing the patent (G. 4/91, OJ 1993, 707). The principle that the assessment of the nature of a procedural act taken by a party before the EPO is to be made with consideration of its actual substance rather than with consideration of its form or name applies equally when deciding whether national infringement proceedings have been commenced (T. 188/97).

1.3.1 Proceedings for infringement instituted by patent proprietor – Article 105(1)(a) EPC

In T. 223/11 the board held that it was internationally a widely accepted principle that the submission of a request on the national level for a marketing authorisation for a pharmaceutical product by a generic company did not constitute patent infringement (the so-called Bolar exemption). The proceedings instituted by the patent proprietor before the national administrative court, no matter how obstructive these may have been to a future market entry of the intervener's product, could not be considered as equivalent to infringement proceedings, irrespective of whether the Bolar exemption had been codified in the relevant national law or not.

In T. 1713/11 the board stated that the EPC gives no specific definition of what constitutes proceedings for infringement. Furthermore, intervention was conceived as a procedurally

exceptional situation, which is justified only by a substantial legitimate interest of the assumed infringer to enter the opposition proceedings. Therefore, it did not appear likely that there was a legislative intent to create an elaborate and intricate system of procedural provisions for the admissibility of interventions, and the boards too should refrain from creating such a system through their case law, and focus instead on whether the substantive conditions for admitting an intervention were fulfilled. Nullity proceedings concerning the patent at issue would not qualify and neither would *saisie-contrefaçon* proceedings (see also T 305/08). However, the definition of "proceedings for infringement" was not limited to civil proceedings, to proceedings that allow for certain remedies to be claimed, or two party proceedings. The board therefore concluded that as long as a patent proprietor or any other party entitled to do so initiated proceedings which aimed to establish whether a third party was commercially active in an area that fell within the patent proprietor's right to exclude, such proceedings were "proceedings for infringement" within the meaning of Art. 105 EPC.

In T 1746/15 the board followed T 1713/11, according to which "proceedings for infringement" pursuant to Art. 105(1)(a) EPC were "proceedings meant to establish whether a third party is commercially active in an area that falls within the patentee's right to exclude". The board held that the independent evidentiary proceedings under German law ("*selbständiges Beweisverfahren*" or "*Beweissicherungsverfahren*", § 485 DE-ZPO) initiated against the respondent by decision of the Landgericht Düsseldorf do not constitute the "establishment" of an infringement within the above meaning. The independent evidentiary proceedings under German law is comparable to "*saisie*" proceedings, e.g. "*saisie-contrefaçon*" in France, which are not regarded as "infringement proceedings" in terms of Art. 105(1)(a) EPC (T 1713/11 and T 305/08).

The appellant (opponent) in T 439/17 had filed notice of intervention in the opposition proceedings, invoking evidence preservation proceedings in Germany ("*Beweissicherungsverfahren*", § 485 DE-ZPO) that the patent proprietor had instigated. The patent proprietor had then, based on those proceedings' outcome, duly initiated infringement proceedings against the opponent while the appeal proceedings were pending. The appellant had argued that the two sets of proceedings had to be seen as one within the meaning of Art. 105 EPC, alleging support for its view in Section 493 DE-ZPO. The board disagreed, finding that it could not be derived from the latter provision that they had to be considered consolidated or otherwise procedurally linked. Furthermore, an intervention had to be admissible at the time of the intervention and could not be made admissible retroactively. In short, the board held that evidence preservation according to Section 493 DE-ZPO and subsequent infringement proceedings had to be seen as separate when applying Art. 105(1)(a) EPC; consequently the intervention before the opposition division had been inadmissible.

1.3.2 Request to cease alleged infringement and institution of proceedings for non-infringement – Article 105(1)(b) EPC

In T 195/93 the board held that if a patentee simply sent a legal warning letter asking the intervener to stop production and sale of a product covered by the patent, this could not be regarded as institution of proceedings for a court ruling even if under national law the